

**DURABLE PROCURATION AND MANDATE  
(FINANCIAL POWER OF ATTORNEY)**

**FOR**

**EILEEN MARY SOMMERS**

**DATED** \_\_\_\_\_



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# **DURABLE PROCURATION AND MANDATE (FINANCIAL POWER OF ATTORNEY)**

**STATE OF LOUISIANA**

**PARISH OF \_\_\_\_\_**

## **I. APPOINTMENT**

**BE IT KNOWN**, that on this \_\_\_\_ day of \_\_\_\_\_, \_\_\_\_\_, before me, the undersigned Notary Public, duly commissioned and qualified, and in the presence of the witnesses hereinafter named and undersigned, personally came and appeared:

**EILEEN MARY SOMMERS**, an individual of the lawful age of majority, domiciled in the Parish of Orleans, State of Louisiana (SSN: XXX-XX-6490),

hereinafter referred to sometimes as "Appearer", who declared that she does by these presents make, nominate, ordain, authorize, constitute and appoint, and in her place and stead, depute and put

**RONALD D. LIPTON**, an individual of the full age of majority, domiciled in the Parish of Orleans, State of Louisiana (SSN: XXX-XX-\_\_\_\_\_) hereinafter sometimes referred to as "Co-Agent",

**AND**

**SOPHIA SOMMERS TILITZ**, an individual of the full age of majority, domiciled in the County of \_\_\_\_\_, State of Maine (SSN: XXX-XX-\_\_\_\_\_) hereinafter sometimes referred to as "Co-Agent",

to be her true and lawful Co-Agents and attorneys-in-fact, general and special, giving, and by these presents, granting, unto the said Agent, full power and authority, for and in the name of and on behalf of Appearer, to do, perform, conduct, manage and transact all and singular, the affairs, business, concerns and matters of Appearer, of whatever nature or kind, without any exception or reservation whatever, including particularly, but not limited to, the following:

## **II. POWERS AND AUTHORITIES**

### **A. FINANCIAL AND BUSINESS AUTHORITY**

1. To deposit all moneys collected and received for the account of Appearer to the credit of Appearer in any bank or banks or other corporate institution.
2. To draw money out of any bank or banks, or corporate institutions, wherein the same may



Durable Financial Power of Attorney  
of Eileen Mary Sommers

have been deposited in the name of or for the account of Appearer.

3. To open, close and enter in Appearer's name, place and stead, any safety deposit box or boxes in any bank or other corporate institution, and to remove all or any part of the contents therefrom, with full power to do and act in connection with the said box or boxes anything that Appearer might do as owner of said box while personally present, and to sign such signature cards, releases, instruments, or agreements as Agent may deem fit and proper.
4. To invest all funds belonging to Appearer to the best advantage of Appearer and as the said Agent may think proper and best.
5. To deposit drafts, bills of exchange, checks, acceptances and promissory notes or other obligations for collection in any bank or corporate institution, and withdraw the same, or the amount or proceeds thereof, at pleasure, by check or otherwise. To draw and accept bills of exchange.
6. To receive and acknowledge notices of protest of all or any bills, drafts and promissory notes, to which Appearer may be a party or of which Appearer may be the holder.
7. **RETIREMENT PLANS.** To do all of the following with respect to any and all retirement plans, IRA, Keough, 401(k), annuity, deferred compensation or any other plan (collectively "retirement plan" or "retirement plans" as the context may require):
  - (a) To create and contribute to Individual Retirement Accounts or employee benefit plans for Appearer's benefit in order to achieve the federal income tax deductions therefor.
  - (b) Select payment options under any retirement plan which Appearer participates, including plans for self-employed individuals.
  - (c) Designate beneficiaries under those retirement plans and change existing designations.
  - (d) Make voluntary contributions (whether deductible or non-deductible) to retirement plans.
  - (e) Exercise the investment powers available under any self-directed retirement plan.
  - (f) Make rollovers of plan benefits into other retirement plans.
  - (g) If authorized by the plan, borrow from, sell assets to and purchase assets from the plan.
  - (h) Waive the right of Appearer to be a beneficiary of a joint or survivor annuity if the principal is a spouse who is not employed.



- (i) Change the form of the retirement plan as may be permitted by law such as to convert a traditional retirement plan to a ROTH individual retirement plan.
  - (j) To make or exercise any and all options or election Appearer may have with regard to assets of such retirements plan, or the form of benefits thereof, specifically including the right to purchase an immediate annuity with any portion of the assets in the retirement plan.
  - (k) To receive distributions from retirement plans and to endorse or deposit checks from retirement plans.
8. **INSURANCE.** To do all of the following with respect to any and all insurance and annuity policies and transactions:
- (a) Continue, pay the premium or assessment on, modify, rescind, release, or terminate, a contract procured by or on behalf of Appearer which insures or provides an annuity to either Appearer or another person, whether or not Appearer is a beneficiary under the contract.
  - (b) Procure new, different, and additional contracts of insurance and annuities for Appearer and Appearer's spouse, children, and other dependents, and select the amount, type of insurance or annuity, and mode of payment.
  - (c) Pay the premium or assessment on, modify, rescind, release, or terminate a contract of insurance or annuity procured by the Agent.
  - (d) Designate the beneficiary of the contract.
  - (e) Apply for and receive a loan on the security of the contract of insurance or annuity.
  - (f) Surrender and receive the cash surrender value.
  - (g) Exercise an election.
  - (h) Change the manner of paying premiums.
  - (i) Change or convert the type of insurance contract or annuity as to any insurance contract or annuity with respect to which Appearer has or claims to have a power described in this Section.
  - (j) Change the beneficiary of a contract of insurance or annuity.
  - (k) Apply for and procure government aid to guarantee or pay premiums of a contract of insurance on the life of Appearer.



- (l) Collect, sell, assign, hypothecate, borrow upon, or pledge the interest of Appearer in a contract of insurance or annuity.
- (m) Pay from the proceeds or otherwise, compromise or contest, and apply for refunds in connection with, a tax or assessment levied by a taxing authority with respect to a contract of insurance or annuity or its proceeds or liability accruing by reason of the tax or assessment.

9. **BUSINESS AFFAIRS.**

- (a) To create, form or cause to be formed and to execute all documents necessary to create, organize, continue or conduct any business (which terms include, without limitation, any farming, manufacturing, mining, retailing, service or other type of business operation) in any form, whether as a proprietorship, joint venture, partnership, corporation, limited liability company, trust, or other legal entity.
- (b) To operate, buy, sell, expand, contract, terminate, or liquidate any business.
- (c) To direct, control, supervise, manage or participate in the operation of any business, and to engage, compensate managers, employees, independent contractors, agents, attorneys, accountants and consultants, and, in general, to conduct, engage in and transact any and all lawful business whatever nature or kind in which Appearer is engaged or may become engaged, in Agents' discretion.
- (d) To sell, exchange, transfer, or pledge all or any shares of the capital stock, partnership interest, limited liability company units or other equity interest in any corporation, partnership, limited liability company, or other business entity owned by Appearer, and to receive and receipt for the sale price or proceeds therefrom or other consideration therefor and the dividends or distributions due, or to become due thereon.
- (e) To attend all or any meetings of creditors wherein the said Appearer may be interested, to vote in Appearer's name on all questions or matters that may be submitted to such meetings.
- (f) To attend all or any meetings of the stockholders of any corporation, partners of any partnership, or members of any limited liability company or other association in which the said Appearer may own stock, partnership or other membership interest, or be interested, and to vote or execute proxies in favor of others, and to vote in the name of Appearer on all questions or matters that shall or may be submitted at such meeting.
- (g) To exercise all voting rights with respect to securities in person or by proxy, enter into any voting trusts and consent to limitations on the right to vote; and in general, exercise all powers with respect to securities on behalf of an in the name of Appearer.



## **B. PROPERTY AUTHORITY**

1. To pledge and pawn all or any part or parts of the property of Appearer, and particularly all or any shares of stock in any corporation or equity interest in any other business entity owned by Appearer; to make and give any note or notes which may be necessary, from time to time, or renew, extend or waive prescription of same.
2. To grant, bargain, sell, exchange, convey, transfer, assign and deliver, with full guaranty of title and with complete substitution and subrogation to all rights and actions of warranty against all former owners and vendors to any person or persons, firm, or corporation, all or any part of the immovable, movable, corporeal, incorporeal, or mixed property of Appearer, wherever situated, for such price or for such consideration and upon such terms and conditions, as the said Agent may deem proper; to receive the price of or other consideration from such sales, exchanges and transfers and to grant receipt and acquittance therefor, including particularly, but not by way of exclusion or limitation, any and all property located in any Parish in the State of Louisiana or in any other State of the United States of America.
3. To buy and purchase and acquire by exchange or otherwise all property of any kind, movable or immovable, corporeal or incorporeal or mixed, wheresoever situated, in the name of and for the account of Appearer for such price or other consideration and upon such terms and conditions as Agent may deem proper; to pay the price or deliver such other consideration therefor, and to sign and execute all acts, deeds and documents which the said Agent deems proper.
4. To borrow money from and contract loans with any bank(s), homestead(s), insurance company(ies) or other financial institution(s) on the notes or obligations of the said Appearer drawn by Appearer or by the said Agent or those of others which shall or may come into the hands of the said Agent for the use of the said Appearer; to receipt for the proceeds of such loans and borrowed money; to execute notes or obligations from time to time for the renewal of all or any part or parts thereof; and to bind Appearer by acknowledgment of debt, promises to pay and engagements of all kind.
5. To encumber, hypothecate or mortgage, upon such terms and conditions and subject to such clauses, procedures for executory process, waivers and releases, including any homestead exemption to which Appearer may be entitled, as the said Agent, in the Agent's sole discretion deem proper, all or any part or parts of the property belonging to Appearer, movable, immovable or mixed, wherever situated, including particularly, but not by way of exclusion or limitation, any property situated in any Parish in the State of Louisiana or in any other State of the United States of America.
6. To consent and agree to all privileges, mortgages and pledges in favor of or against Appearer that may be required and necessary.
7. To consent to the erasure and cancellation of all mortgage and privilege inscriptions in



favor of or against Appearer.

8. To lease, let or hire, for such time and for such price, and upon all such terms and conditions as the said Agent deems proper, all or any part of the property belonging to Appearer; and to receive and receipt for the consideration paid therefor as the same fall due.
9. To put an end to leases and give the necessary notices to vacate according to law; and to make all repairs necessary for the preservation of the property of Appearer.
10. To make and execute oil, gas and mineral leases, on any property of Appearer or in which Appearer may have an interest, on such terms and conditions as said Agent shall deem proper in the Agent's sole and uncontrolled discretion, and to receive and receipt for the bonuses, rents and proceeds thereof, including royalties, as the same shall fall due, to make and execute mineral and royalty deeds either selling or buying mineral or royalty rights, and for the full execution of the purposes aforesaid, to make, sign and execute, in the name of Appearer, all acts, whether of sale, mortgage, lease, release, contract, compromise, covenant, deed, assignment, agreement, division order or otherwise, that shall or may be requisite or necessary, and containing such terms, conditions and provisions as said Agent shall deem necessary and proper and bind Appearer thereby as firmly as if the same were or had been Appearer's own proper acts and deeds; to make and execute all other contracts relating to minerals, including unitization and pooling agreements, for the exploration and development of oil, gas, salt, sulphur, and other minerals, or any of them, in and under any of the properties of Appearer, upon such terms and conditions and for such consideration as the said Agent may deem proper.
11. To make and execute agricultural leases, on any property of Appearer or in which Appearer may have an interest, on such terms and conditions as Agent shall deem proper in Agent's sole and uncontrolled discretion, and to receive and receipt for the bonuses, rents and proceeds thereof. To receive and receipt for any and all payments to which Appearer may be entitled from any Farm Service Agency (FSA) program, crop allotment program, any disaster relief program, or any other government program(s) relating in any manner whatsoever to any property of Appearer or in which Appearer may have interest.

### **C. DIGITAL ASSETS**

1. To access, use and control my digital devices, including but not limited to, desktops, laptops, tablets, peripherals, storage devices, mobile telephones, smartphones, and any similar digital device which currently exists or may exist as technology develops or such comparable items as technology develops for the purpose of accessing, modifying, deleting, controlling or transferring my digital assets.
2. To access, modify, delete, control and transfer my digital assets, including but not limited to, my emails received, email accounts, digital music, digital photographs, digital videos,



software licenses, social network accounts, file sharing accounts, financial accounts, domain registrations, DNS service accounts, web hosting accounts, tax preparation service accounts, online stores, affiliate programs, other online accounts and similar digital items which currently exist or may exist as technology develops or such comparable items as technology develops.

#### **D. LEGAL AND TAX MATTER AUTHORITY**

1. To represent Appearer, judicially or otherwise, whether as heir, legatee, creditor, executor, administrator or otherwise, in all successions or estates in which Appearer may be or become interested including any acceptance or renunciation thereof.
2. To apply for the administration of all successions or estates in which Appearer may be or become interested and to demand, obtain and execute all orders, decrees and judgments as said Agent may deem proper therein, and finally to settle, compromise and liquidate Appearer's interest therein and to receive and receipt for all property to which Appearer may be entitled in respect of said successions or estates; to accept a succession unconditionally or with benefit of inventory; to accept a bequest; to reject, renounce or disclaim a bequest or a succession, in whole or in part; to sue for a partition in all matters in which Appearer may be appointed.
3. To accept donations inter vivos of all kinds to Appearer from any person or persons.
4. To give and make inter vivos donations of movables and immovables from Appearer to any person or persons all in the manner required by law, and on such terms and conditions as said Agent may see fit, including, without limitation, outright or to a new or existing trust or other custodial arrangement, or otherwise to or for the benefit of Appearer, Appearer's spouse, Appearer's children and their descendants, and the spouses of all of Appearer's descendants, including, but not limited to Agent, in his or her individual capacity, and such other persons as Agent may determine to be in Appearer's best interest or in the best interest of Appearer's estate, including, but not limited to, gifts that will be eligible for the annual gift tax exclusion in I.R.C. §2503(b) as it now appears or may be hereafter amended, and gifts of tuition costs and medical costs in accordance with I.R.C. §§2503(e) and 2611(b)(1), as they now appear or may be hereafter amended as well as taxable gifts that may use up Appearer's unified credit during lifetime as the same is defined in I.R.C. §2010 as it now appears or may be hereafter amended, and gifts to charities and the making or fulfillment of charitable pledges, as well as gifts to qualify for or preserve Medicaid, Veterans or other governmental benefits, and to prepare, execute and consent to, or on behalf of Appearer, to file any return, report, declaration or other document required by the laws of the United States, or by any state or subdivision thereof which Agent deems to be necessary or desirable with respect to any gift made under the authority of this section; and to impose such conditions on the said donations or Agent may determine, including, without limitation, the power to revoke; and to appear before a notary and execute such authentic acts of donation or trust as are necessary or desirable in the sole unlimited discretion of Agent on behalf of and as the affirmative act of Appearer.





5. To consent to the splitting of gifts with Appearer's spouse so that the annual exclusions, unified credits, and generation skipping transfer tax exemptions and exclusions of both spouses may be used in accordance with I.R.C. §§2513 and 2652(a)(2) and Treas. Reg. §25.2513-2(c).
6. To ask, demand, have, take, sue for, and by all lawful ways and means to recover and receive of, and from, all and every person, firm or corporation, all and every such sum and sums of money, goods, debts, property and effects whatsoever, as now is or are or may hereafter be, in his, her, its or their custody or possession, due or owing, coming or belonging to Appearer, whether by bond, bill, note, book-debt, account, consignment, bequest, or for or by any reason or means whatsoever, and to that end, with whom it may concern, to adjust, compromise and settle all accounts, and, upon recovery and receipt in the premises, to make and give good and sufficient discharges and acquittances; to refer any matter to arbitration; to make a transaction in matters of litigation; and in general where things to be done are not merely acts of administration, or such as facilitate such acts.
7. To appear before all courts of law, admiralty and equity, there to do, prosecute and defend as occasion shall require, or to compromise, compound and agree in the premises, by arbitration or otherwise, as deemed fit in said Agent's discretion; also to apply for and obtain all and any attachments, sequestrations, injunctions and appeals, give the requisite security and sign necessary bonds.
8. To sign, execute and deliver in the name and on behalf of Appearer all bonds, reports, returns, petitions and other instruments of every kind, nature and description that may be due or required by the government of the United States of America and of the State of Louisiana, and of any branch, department, political subdivision, or agency of either the said United States of America or the State of Louisiana, or any political subdivision, bureau, department or agency thereof, including particularly, but not by way of exclusion or limitation, the filing of tax returns for all Federal and State taxes, protests in connection therewith, claims for refund and all such other instruments as Agent may deem proper or which may be required to be filed by or on behalf of Appearer by the Treasury Department of the United States and any bureau and official thereof, in all matters pertaining to income, gift, estate and other taxes and returns and reports in connection therewith, heretofore or hereafter filed by or on behalf of Appearer; to examine and obtain copies of any and all statements and other documents and receive letters and other communications from the Internal Revenue Service and the Treasury Department with reference thereto; to execute waivers and to enter into compromise settlements and agreements; to attend to all custom house business for account of Appearer and generally to do, execute and perform all acts and things necessary or conferred in the premises with full power of substitution and revocation, hereby ratifying and confirming all that the said Agent and his or her Substitute shall do or cause to be done by virtue hereof, and Agent is hereby granted the same authority and power to act and to represent Appearer before the Department of Revenue and any bureau and official or other agency or political



subdivision of the State of Louisiana.

9. To do the acts necessary to maintain the customary standard of living of Appearer, Appearer's spouse, children, and other individuals customarily or legally entitled to be supported by Appearer, including providing living quarters by purchase, lease, or other contract, or paying the operating costs, including interest, amortization payments, repairs, and taxes on premises owned by Appearer and occupied by those individuals.
10. To sign and execute in the name of and on behalf of Appearer, all bonds, checks, payments and other disbursements made by the Treasury Department or any other agency or bureau of the United States, including particularly, but not by way of limitation or exclusion, United States Treasury bonds in any series or denomination, refund checks for income or other taxes and social security checks.
11. To act for Appearer and be Appearer's Substitute in all cases wherein Appearer may be appointed the Agent or attorney of others and, otherwise, to exercise fiduciary powers that the principal has authority to delegate.
12. To employ at the cost of Appearer a corporate fiduciary to handle any and all books and records and ministerial duties relating to the business affairs of Appearer.
13. To insure the life of any other person on whose life Appearer may have an insurable interest, with such insurance to be in such forms and amounts and with such beneficiary and contingent beneficiary designation as Agent may determine, and to surrender any time, and to borrow against the value of any such policies, and to exercise any options that Appearer may have as owner of such policies, including, without limitation, the power to borrow against such policies and to repay policy loans.
14. To demand, sue for, arbitrate, settle, collect, receive, deposit, and reinvest all property, sums of money, debts, dues, rights, accounts, legacies, bequests, interest, dividends, annuities, and benefits that are now or may later become due or payable to Appearer, including any benefits payable by any governmental body or agency (such as Supplemental Social Security, Medicaid, VA Benefits, Social Security Disability Insurance, Medicare, and Social Security Disability Insurance), and for the purpose of receiving any benefits, assistance, or entitlements, whether by bond, bill, note, debt, account, assignment, bequest, or for any other reason whatsoever, and to take all lawful means to recover such assets or to qualify Appearer for such programs and to compromise claims for such assets and grant discharges for such assets in Appearer's name.
15. To waive, on Appearer's behalf, any attorney-client or physician-patient privileges or duties of confidentiality in circumstances wherein Agent shall deem such waiver appropriate, except to the extent that if any such waiver could infringe on Appearer's Constitutionally-protected rights or would otherwise violate Appearer's Fourth and Fifth Amendment rights, and such disclosure made in accordance with this provision shall be subject to standard clawback rights as though it had been inadvertently produced to an



adversarial party in accordance with the Federal Rules of Civil Procedure and the Federal Rules of Evidence, unless the State in which any disclosure is made offers greater protections to Appearer in terms of restoring the disclosed material's confidential status.

16. **TRUSTS**

- (a) To create a revocable or irrevocable trust in the name and on behalf of Appearer as the Settlor for the benefit of Appearer, or any other individual or entity as the income and/or principal beneficiary of such trust, with an individual, including but not limited to Agent, or a bank, trust company, or other financial institution, as the trustee or trustees, for any purpose, including but not limited to estate and retirement planning, minimization of income, estate, inheritance or gift taxes, or to qualify for or preserve Medicaid, Veterans or other governmental benefits.
- (b) To transfer and deliver to the trustee of such trust all or any portion of the property of Appearer, corporeal, incorporeal, movable and immovable, wheresoever situated, or to employ an individual or bank to handle and manage all or any portion of the property, corporeal, incorporeal, movable and immovable of Appearer, as a Substitute for said Agent(s) appointed herein, and to pay reasonable fees to the trustee or Substitute Agent for services as trustee or Substitute Agent out of the funds of Appearer.
- (c) To execute on behalf of Appearer a written notice of resignation as trustee of any trust and to appoint on behalf of Appearer a successor trustee for any trust.
- (d) To revoke or modify any trust on behalf of Appearer.

17. **DESIGNATION OF CURATOR.** In the event that Appearer becomes incapacitated to the point that she must be interdicted, then, Appearer hereby nominates Agents, **RONALD D. LIPTON** and **SOPHIA SOMMERS TILITZ** as her curator, both as to her person and property, and any Alternate or Substitute Agent named herein below as substitute Curator, both as to her person and property, in the event **RONALD D. LIPTON** and **SOPHIA SOMMERS TILITZ** are unable or unwilling to serve or to continue to serve as Curator, or as Under-Curator in the order of priority listed hereinbelow. Such nomination is without any security or bond, conditioned upon Agent faithfully discharging the duties as Curator. Appearer does further authorize said Curator to execute trust instruments, including special needs or other Medicaid-friendly trusts, on behalf of Appearer as settlor, in accordance with the provisions of Louisiana Code of Civil Procedure Article 4566, and to transfer property on behalf of Appearer to the trust or trusts so created. Appearer expressly authorizes the designated Curator to add assets to any such trusts, to revoke or terminate any such trusts on behalf of Appearer, to withdraw or receive income or principal therefrom, and to request or demand such withdrawals of any trusts.

**E. GENERAL, ADMINISTRATIVE AND SPECIFIC AUTHORITY**

1. To open all letters of correspondence addressed to Appearer, and to answer the same.



2. To receive and attend to all shipments or consignments of produce, goods, wares or merchandise, that shall or may be made to Appearer, either for Appearer's account and risk or that of others, and to pursue the instructions of the owners, shippers or others interested therein, relative thereto.
3. To appoint any individual as Substitute Agent under this act of Procuration and Mandate with all the powers and authority granted herein to my Agent.
4. Generally, for the full execution of the purposes aforesaid, the said Agent is hereby authorized and empowered to do and perform, and to make, sign and execute in the name of Appearer, any and all acts and instruments of writing, that shall or may be requisite, necessary or desirable and bind Appearer thereby as firmly as if the said acts were, or had been, Appearer's own proper acts and deeds; and, also, to do and perform all and every other act, matter and thing whatsoever conducive to the interest of Appearer, whether the same be an act of administration, merely, or an act of alienation, as shall or may be requisite, necessary, or desirable, touching or concerning the affairs, business, assets and concerns of Appearer, as fully, completely and effectively, and to all intents and purposes with the same validity, as if all and every such act, matter and thing, were, or had been, herein particularly stated, expressed, and especially provided for, or as Appearer could or might do if personally present; also with full power of substitution and revocation in favor of said Agent.
5. **SELF DEALING.** Agent shall have the power, without limitation, to conduct transactions and enter into contracts which could be considered self-dealing pursuant to the provisions of Louisiana Civil Code Article 2998. This includes, but is not limited to transactions authorized by this Durable Procuration and Mandate, such as the creation of trusts, donations (including donations to Agent), gifts, and entering into on behalf of Appearer a contract with Agent or any other person, to be compensated for services rendered to or on behalf of Appearer, including but not limited to, a contract to perform personal services for Appearer such as those requiring payment or other compensation to Agent for all acts Agent may perform by authority of this Durable Procuration and Mandate, and Agent is authorized to grant liens, mortgages and other encumbrances against Appearer's property, movable (personal) and immovable (real), to secure, or in payment for, such self-dealing and all other contracts.

### **III. GENERAL PROVISIONS**

#### **A. INTERPRETATION OF TERMS.**

1. If there are more than one Agent, the Co-Agents shall act jointly in all matters unless it is specifically stipulated herein to the contrary.
2. Whenever the singular is used in this Act of Procuration and Mandate, it shall also include



the plural, and the term "Appearer" or "Appearers" shall apply to each Appearer and each Appearer individually, if there is more than one.

3. The masculine shall include the feminine and the feminine the masculine, and the neuter shall apply to both.
4. "Corporate institutions" wherever used herein, shall include particularly, but not by way of limitation or exclusion, all business entities of every kind, nature or description, wheresoever situated, and all financial corporations and institutions of every kind, nature and description, wheresoever situated, especially state and national banks and state and federal building and savings and loan associations.

#### **IV. EFFECTIVE DATE /DURABILITY**

##### **A. EFFECTIVE DATE.**

This Act of Procuration and Mandate in favor of **RONALD D. LIPTON** and **SOPHIA SOMMERS TILITZ** shall become effective immediately upon the date signed by Appearer, and shall remain effective until the earlier of the death of Appearer or until it is revoked. In the absence of actual knowledge of death or revocation on the part of the parties concerned, dealing on the faith of this Act of Procuration and Mandate, it shall not be revoked in any fashion, even by Appearer's death, until notice of such death or revocation is placed of record in the office of the Clerk of Court for Orleans Parish, Louisiana. The Act of Revocation shall be in writing, signed by Appearer, in the form of an authentic act or an act under private signature, duly acknowledged.

##### **B. RATIFICATION AND INDEMNITY.**

Appearer does hereby ratify and confirm all and whatsoever said Agent, or said Agent's Substitute, shall lawfully do, or cause to be done by virtue of this act of Procuration and Mandate, and agrees to save, protect, defend, indemnify and hold said Agent, and said Agent's Substitute, harmless for all actions taken on Appearer's behalf, including any acts or omissions which may be negligent, *excluding* only willful misconduct.

##### **C. ALTERNATE OR SUBSTITUTE AGENT.**

In the event that either **RONALD D. LIPTON** or **SOPHIA SOMMERS TILITZ** shall be unable or unwilling to serve or to continue to serve as Agent, then the other shall serve as sole Agent. If both **RONALD D. LIPTON** and **SOPHIA SOMMERS TILITZ** are unable or unwilling to perform or continue to perform as my Co-Agent and lawful attorney-in-fact, then I nominate, ordain, authorize, constitute and appoint, in their place and stead, **EMILY P ZASOWSKI**, domiciled in the County of [this.Parish], State of Massachusetts (SSN: XXX-XX-\_\_\_\_\_) as my true and lawful Substitute Agent and attorney-in-fact with full power and authority to perform, conduct, manage and transact all and singular, the affairs, business, concerns and



matters of Appearer, of whatever nature or kind, without any exception or reservation whatever, including, but not limited to, each of the powers specifically named above which have been granted to my original Agent.

*[REMAINDER OF PAGE LEFT BLANK INTENTIONALLY]*

*[SIGNATURES ON FOLLOWING PAGES]*



**THUS DONE AND PASSED** on this \_\_\_\_ day of \_\_\_\_\_, \_\_\_\_\_, in the presence of the undersigned competent witnesses, who have hereunto signed their names with the Appearer and me, Notary Public, after due reading of the whole.

**WITNESSES:**

\_\_\_\_\_  
PRINTED NAME: \_\_\_\_\_

\_\_\_\_\_  
**EILEEN MARY SOMMERS**, *Appearer*  
525 Arabella Street  
New Orleans, LA 70115

\_\_\_\_\_  
PRINTED NAME: \_\_\_\_\_

**ACCEPTED BY:**  
\_\_\_\_\_  
**RONALD D. LIPTON**, *Co-Agent*  
525 Arabella Street  
New Orleans, LA 70115

\_\_\_\_\_  
**NOTARY PUBLIC**  
Printed Name: \_\_\_\_\_  
Notary / Bar Roll Number: \_\_\_\_\_  
\_\_\_\_\_, \_\_\_\_\_ County/Parish, \_\_\_\_\_  
My Commission expires: \_\_\_\_\_



**THUS DONE AND PASSED** on this \_\_\_\_ day of \_\_\_\_\_, \_\_\_\_\_, in the presence of the undersigned competent witnesses, who have hereunto signed their names with the Agent and me, Notary Public, after due reading of the whole.

**WITNESSES:**

**ACCEPTED BY:**

\_\_\_\_\_  
PRINTED NAME: \_\_\_\_\_

\_\_\_\_\_  
**SOPHIA SOMMERS TILITZ, *Co-Agent***  
19 Ogunquit Road  
South Berwick, ME 03908

\_\_\_\_\_  
PRINTED NAME: \_\_\_\_\_

\_\_\_\_\_  
**NOTARY PUBLIC**  
Printed Name: \_\_\_\_\_  
Notary / Bar Roll Number: \_\_\_\_\_  
\_\_\_\_\_, \_\_\_\_\_ County/Parish, \_\_\_\_\_  
My Commission expires: \_\_\_\_\_





**THUS DONE AND PASSED** on this \_\_\_\_ day of \_\_\_\_\_, \_\_\_\_\_, in the presence of the undersigned competent witnesses, who have hereunto signed their names with the Agent and me, Notary Public, after due reading of the whole.

**WITNESSES:**

**ACCEPTED BY:**

\_\_\_\_\_  
PRINTED NAME: \_\_\_\_\_

\_\_\_\_\_  
**EMILY P ZASOWSKI, *Agent***  
17 Fells Rd  
Stoncham, MA 02180

\_\_\_\_\_  
PRINTED NAME: \_\_\_\_\_

\_\_\_\_\_  
**NOTARY PUBLIC**  
Printed Name: \_\_\_\_\_  
Notary / Bar Roll Number: \_\_\_\_\_  
\_\_\_\_\_, \_\_\_\_\_ County/Parish, \_\_\_\_\_  
My Commission expires: \_\_\_\_\_

